

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 08/20/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C23-02709 CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC. *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>
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If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to November 17, 2026, at 8:30 am in Department 10.

2. 9:00 AM CASE NUMBER: C24-00664 CASE NAME: COUNG CHAU VS. RONALD FONG *HEARING ON MOTION IN RE: LEAVE TO FILE THIRD AM. COMPLAINT FILED BY: CHAU, COUNG VI <u>*TENTATIVE RULING:*</u>
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Before the Court is Plaintiff and Cross-Defendant Cuong Vi Chau and Bill Truong (collectively,

“Plaintiffs”)’s motion for leave to file the Third Amended Complaint. The Motion is opposed by Defendants and Cross-Complainants Ronald A. Fong and Tyler Fong individually and dba Next Level Motors, Inc. (collectively, “Defendants”).

Plaintiffs seek to amend their complaint to provide greater factual detail concerning the underlying transactions alleged in the operative Second Amended Complaint. For each Plaintiff, the proposed TAC pleads new causes of action and new remedies arising from those additional alleged facts.

For the following reasons, the motion is **granted**.

Plaintiffs are ordered to separately file the Second Amended Complaint with the Court by August 24, 2026.

Brief Factual and Procedural Background

Plaintiffs filed their original complaint in this action for fraud, breach of oral contract, and common counts on March 13, 2024. The original complaint was amended and a First Amended Complaint filed on Oct. 10, 2024, and it was later further amended via a Second Amended Complaint on Dec. 12, 2025.

The gravamen of the dispute is an alleged agreement to purchase, repair, and sell damaged high-end vehicles. There are three core transactions alleged regarding two Tesla Model Y vehicles and a Porsche Panamera. The proposed TAC adds additional allegations around those transactions. It also adds new causes of action for each Plaintiff for (i) fraudulent misrepresentation, (ii) fraudulent concealment, and (iii) violations of Business and Professions Code §§ 17200 *et seq.* and their related remedies.

Defendants filed a motion for summary judgment directed toward the Second Amended Complaint on June 5, 2026.

Plaintiffs moved *ex parte* to continue the hearing on Defendants’ Motion for Summary Judgment, vacate and continue trial and related dates, and to extend discovery on July 24, 2026. On July 28, 2026 the Court granted the application, continuing the hearing on Defendants’ motion to January 7, 2027 and the trial date from September 28, 2026 to May 3, 2027. Pursuant to that order, the Court also extended fact discovery so that the parties could complete fact discovery through the statutory cutoff calculated from the new trial date.

Legal Standard

The court may, in its discretion, in the furtherance of justice “allow, upon any terms as may be just, an amendment to any pleading or proceeding[.]” (Code Civ. Proc., § 473(a)(1); see also Code Civ. Proc., §576 [stating that “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading”].) The court’s discretion should be “exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment,” even if the amendment was the result of an unreasonably delayed filing. (*Id.* at 1048.)

Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted

allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Analysis

Undue Delay

Defendants argue that “Plaintiff offers no satisfactory explanation for waiting until after the MSJ was filed to seek leave to amend.” (Opp. at 18:5-6.)

“‘[E]ven if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.’” (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486 [unwarranted delay in presenting amendment may of itself be valid reason for denial of leave]; see also *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692 [“[t]here is a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to amend pleadings, particularly where the new amendment would interject a new issue which requires further discovery”].)

Here, however, the Court cannot conclude that Plaintiff unreasonably delayed in seeking amendment. First, counsel for Plaintiff avers that “[t]he additional facts and allegations pleaded in the proposed TAC were learned and confirmed through Plaintiffs’ further efforts at written discovery, a comprehensive review of Defendants’ document production, and Plaintiffs’ review of materials received from third party discovery, particularly the responses that Plaintiffs received from third party subpoenas to the California DMV and the California Bureau of Automotive repair, which were respectively received on May 12, 2026 and June 1, 2026.” (Moya Decl. at ¶ 8.) The instant motion was filed approximately a month and a half later, on July 13, 2026. The date was advanced *ex parte* to August 20, 2026.

Counsel for Plaintiff also provides considerable detail regarding the contentious discovery process between the parties which played a role in delaying the receipt and review of documents.

On these facts, the Court cannot conclude that Plaintiffs unreasonably delayed in seeking to amend their complaint. This element does not support denial.

Prejudice

Next, Defendants argue that the amendment will unfairly prejudice them in several respects.

Prejudice in this context is where amendment would result in, among other things, necessitating a continuance to allow the defendant to depose new witnesses, a delay of trial, along with a loss of critical evidence, added costs of preparation, or increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.)

Here, the trial date has already been continued eight months from September 28, 2026 to May 3, 2027. Consequently, amendment of the underlying complaint itself will not delay the trial as it has already been continued.

There is no claim that amendment will cause loss of evidence or witnesses; instead, Defendants argue, without authority, that “Plaintiffs should not be permitted to avoid adjudication of the claims they actually pleaded by changing the pleading after Defendants have already incurred the burden and expense of preparing a dispositive motion.” (Opp. at 14:12-13.) All three of the cases cited by Defendants in support of their argument that the Court should deny the motion because it would moot their pending summary judgment hearing are distinguishable. (Opp. at 14:2-8 [citing *Applegate v. Carrington Foreclosure Services, LLC* (2025) 112 Cal.App.5th 356, 368-369 (*Applegate*); *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 (*Melican*); and *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 (*Falcon*).].)

In all three cases, the request to amend the underlying pleading was made orally at the hearing on the motion for summary judgment that would have been rendered moot. As the court in *Applegate* noted, “it would have been within the trial court’s discretion to deny the request for leave to amend either because [plaintiff] failed to proffer an amendment that stated a cause of action or because the circumstances demonstrated unexplained delay, lack of diligence, and unfairness to defendants.” (*Applegate, supra*, 112 Cal.App.5th at p.369.) Here, Plaintiffs filed a regularly noticed motion that complies with California Rule of Court 3.1324 subsections (a) and (b). And, as the Court described above, the facts do not support a conclusion that Plaintiffs unduly delayed in moving to amend.

Finally, Defendants’ additional arguments regarding futility and inflammatory accusations are directed at the merits of the proposed amendment and are not grounds to deny amendment.

Because the Court concludes that Plaintiff has not been dilatory, and any prejudice to the Defendants is ameliorated by the new trial date and extended deadlines based on that new trial date, the motion for leave to amend is **granted**.

3. 9:00 AM CASE NUMBER: C24-02090

CASE NAME: LEAH FREEMAN VS. DAVID HUNTER

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

It appears from the documents before the Court that (a) Christopher Brown is now represented; (b) Cross-Complainants will be dismissing the case against him; and (c) conversations about resolution are ongoing. The Court continues this Case Management Conference to September 15, 2026, at 8:30 am. No appearances required for August 20, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02568

CASE NAME: TYLER LIND VS. SEGWAY INC.

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO EDAN BENMELECH FOR DEF SEGWAY INC.

FILED BY: SEGWAY INC.

TENTATIVE RULING: